Sullivan & Palmer LLP

Pearland, TX
Phone 713-555-2970

Settlement Demand

10/09/2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1113 - Demand for settlement

Dear Claims Representative:

Our firm represents Amanda Hawkins in connection with the motor vehicle collision that occurred on 03/07/2024. Our client was lawfully traveling in the proper lane when your insured changed lanes without signaling or checking that the adjacent lane was clear, striking the driver's side of our client's vehicle and forcing it toward the shoulder. Liability for this collision rests squarely with your insured, whose failure to yield the right of way violated the applicable traffic code and constitutes negligence.

As a direct result of the impact, our client suffered a cervical strain with significant neck pain, stiffness, and reduced range of motion. Our cilent was evaluated at the emergency department on the day of the accident and has since attended ongoing physical therapy and chiropractic care. Treating providers have documented restricted movement and recommended continued treatment. Our client has also missed time from work and has been unable to perform routine household and recreational activities without pain.

Accordingly, we demand payment of $211,000.00 to resolve all claims arising from this collision. This figure reflects medical expenses to date, lost wages, the cost of anticipated future care, and compensation for pain and suffering. Please provide your response in writing within thirty days of the date of this letter. If we do not receive a satisfactory resolution by that date, we are prepared to file suit without further notice.

Expert review: Nicole Ward, neurologist

Sincerely,

David Young
Sullivan & Palmer LLP